

25STCV33449 25STCV33449

County: los-angeles

Division: Civil Law and Motion

Department: 414

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Case Number: 25STCV33449 Hearing Date: August 14, 2026 Dept: 414

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A. YOUNAN V. N. YOUNAN

Friday,

August 14, 2026

[TENTATIVE] ORDER CONTINUING

THE HEARING ON PLAINTIFF'S REQUEST FOR COURT JUDGMENT

The

complaint alleges Defendant created multiple accounts on social media to attack and harass Plaintiff, and spread disparaging and harmful comments. Plaintiff alleges claims for intentional infliction of emotional distress, defamation, and invasion of privacy – false light.

The

clerk entered default against Defendant on March 5, 2026. Plaintiff now seeks judgment of \$2,500,000.

While the

Court's electronic file reflects that Plaintiff served a Statement of Damages on Defendant, it is not filed with the Court. The court shall render judgment as supported by the evidence, not exceeding the amount stated in the complaint or the Statement of Damages. (Cal Code Civ Proc § 585(b).)

A

defaulting defendant confesses the material allegations of the complaint that are well pleaded. (Johnson

v. Stanhiser (1999) 72 Cal.App.4th 357, 362.) Damages may only be awarded for a “well-pled cause of action, and to that end, the complaint must be examined.” (Carlsen

v. Koivumaki (2014) 227 Cal.App.4th 879, 899–900.) The judge must “take time to analyze the complaint to ensure that it supports the judgment that plaintiff is seeking and to determine whether the evidence ... supports the requested damages.” [citation omitted]. (LCPFV, LLC v. Somatdary Incorporated (2024) 106 Cal.App.5th 743.)

Plaintiff's

declaration attests that she has been emotionally traumatized, was required to seek counseling, and is emotionally exhausted. (Younan decl., ¶¶ 18-19.) She attests she is a director for a global private equity company with a reputation critical to her work. (Id. ¶ 20.) She required long-term, continued mental health therapy and has had to repair her reputation. (Id. at ¶ 21.)

Plaintiff

is required to submit a brief summary identifying in part, the nature of Plaintiff's claims. (Cal.

Rules of Court, rule 3.1800.) More particularly, Plaintiff is ordered to address the claims on which judgment is sought, and the proper measure of damages for each claim as supported by authority.

Plaintiff

has not provided any evidence of damages. (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 272 [“... it is incumbent upon the plaintiff to prove up his damages, with actual evidence.”].)

There is

no evidence to support the Plaintiff's damage to reputation. Plaintiff did not submit bills documenting expenses incurred for mental therapy or to repair her reputation.

Accordingly,

the Court continues the hearing to January 2, 2027. Plaintiff is ordered to file the Statement of Damages served on Defendant, submit a summary of the case as described above, and a supplemental declaration with documentary evidence supporting the damage claim.

All documents shall be filed 10 court days before the hearing.